



SPONSOR: Rep. Lynn & Rep. Ortega & Sen. Hoffner & Sen. Pinkney
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Snyder-Hall, Lambert, Berry

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 95

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO DISCLOSURE OF STUDENT RECORDS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter I, Chapter 41, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4111A. Disclosure of students' school records; prohibitions.

(a) For purposes of this section:

(1) "Guardian" means a parent or legal guardian of a minor student or student who is otherwise legally dependent.

(2) "School" means a school district, a charter school, a vocational-technical school, or any other school or program that is primarily funded with state or local funds.

(3) "Student" means a person who at all relevant times is admitted to the academic institution.

(4) "Student record" means any record, file, document, or other information maintained by an academic institution that contains the student's or guardian's personally identifiable information.

(b) A school or the Department of Education must obtain authorization from the Delaware Attorney General before the school or Department of Education may disclose student records to an immigration enforcement agency or immigration enforcement agent, unless the disclosure is pursuant to a judicial warrant.

(c) Authorization under paragraph (b) of this section must be requested by the school or the Department of Education seeking authorization to disclose student records. The request for authorization must:

(1) Be in writing.

(2) Provide the Delaware Attorney General at least 72 hours notice of the request.

(3) State the name of the enforcement agency to whom the disclosure will be made.

(4) State the reason for the request.

(5) Give a detailed description of the scope of the request, including:

a. The purpose of the request.

23 b. A list of records sought.

24 c. The names of individuals who may be impacted by the request.

25 d. The manner in which the student records will be handled and student privacy protected.

26 (d) A student or guardian whose information is disclosed in violation of this section may have a cause of action for
27 injunctive relief and actual damages, including reasonable attorney's fees.

28 Section 2. Amend Chapter 81A, Title 14 of the Delaware Code by making deletions as shown by strike through
29 and insertions as shown by underline as follows:

30 § 8107A. Federal agency cooperation; restrictions.

31 (a) Notwithstanding any other provision of this chapter to the contrary, an operator must obtain authorization from
32 the Delaware Attorney General before the operator may disclose student records to an immigration enforcement agency or
33 immigration enforcement agent, unless the disclosure is pursuant to a judicial warrant.

34 (b) Authorization under paragraph (a) of this section must be requested by the operator seeking authorization to
35 disclose student records. The request for authorization must:

36 (1) Be in writing.

37 (2) Provide the Delaware Attorney General at least 72 hours notice of the request.

38 (3) State the name of the enforcement agency to whom the disclosure will be made.

39 (4) State the reason for the request.

40 (5) Give a detailed description of the scope of the request, including:

41 a. The purpose of the request.

42 b. A list of records sought.

43 c. The names of individuals who may be impacted by the request.

44 d. The manner in which the student data will be handled and student privacy protected.

SYNOPSIS

This Act prohibits the DOE, public schools, and operators of companies that hold digital student data from sharing student information with immigration enforcement agencies without permission from the DE AG.